

# STATE OF NEW YORK

9307--A

2025-2026 Regular Sessions

## IN ASSEMBLY

December 10, 2025

Introduced by M. of A. COLTON -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring that all new motor vehicles sold at motor vehicle dealerships contain a space saver tire

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new section 396-pp to read as follows:

§ 396-pp. Space saver tire requirement. 1. All new motor vehicles sold at motor vehicle dealerships shall include a space saver tire compatible with the motor vehicle sold. Such tire shall be properly secured to the motor vehicle in a manner that prevents any damage to the motor vehicle.

2. This section shall not apply to:

(a) new motor vehicles sold with a run-flat tire.

(b) motor vehicles that do not have a space to secure a space saver tire.

3. For the purposes of this section:

(a) "space saver tire" is a temporary smaller sized spare tire that should only be used temporarily, allowing the vehicle to continue to be driven at reduced speeds for limited distances.

(b) "run-flat tire" is a pneumatic vehicle tire designed to resist the effects of deflation when punctured, allowing the vehicle to continue to be driven at reduced speeds for limited distances, but cannot replace a spare tire for safety and a longer than expected journey to a repair shop.

(c) "motor vehicle" shall have the same meaning as such term is defined in section one hundred twenty-five of vehicle and traffic law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD14053-02-6

1 4. Any person that violates the provisions of subdivision one of this  
2 section shall be subject to a civil penalty of up to two hundred fifty  
3 dollars for a first offense and up to five hundred dollars for any  
4 subsequent offense. The provisions of this section shall be enforced  
5 concurrently by the director or commissioner of a municipal consumer  
6 affairs office, or by the town attorney, city corporation counsel, or  
7 other lawful designee of a municipal or local government, and all moneys  
8 collected thereunder shall be retained by such municipality or local  
9 government.

10 § 2. This act shall take effect on the ninetieth day after it shall  
11 have become a law.